



File No.: EXP202308002

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: As a result of a complaint filed with the Spanish Agency for Data Protection, indications of a possible breach of the provisions of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) were observed, leading to the initiation of actions with file number EXP202209784. The complaint was admitted for processing on October 28, 2022.

SECOND: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities under Article 57.1 of the GDPR, and in accordance with the provisions established in Title VII, Chapter I, Section two, of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (LOPDGDD hereinafter).

In the framework of the investigative actions, two requests for information were sent to UPMOBILE SOLUTIONS, S.L., with NIF B02682276, related to the complaint mentioned in the first section, requiring that within ten working days, it submit to this Agency the information and documentation specified therein. The first request was registered for dispatch on March 21, 2023, while the second was registered on May 12, 2023.

THIRD: The requests for information were notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP). The first request was sent by electronic notification and was not collected within the availability period, thus being deemed rejected on April 1, 2023, while the second was collected by UPMOBILE SOLUTIONS, S.L. on May 15, 2023, as evidenced by the acknowledgments of receipt in the file.

FOURTH: Regarding the requested information, UPMOBILE SOLUTIONS, S.L. has not submitted any response to this Spanish Agency for Data Protection.

FIFTH: On June 22, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against UPMOBILE SOLUTIONS, S.L., for the alleged infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR.

The initiation agreement was notified to UPMOBILE SOLUTIONS, S.L., in accordance with the rules established in the LPACAP, through an announcement published in the Official State Gazette dated July 5, 2023, after the postal notification of said initiation agreement was returned as undeliverable, despite having been sent to the tax address of UPMOBILE SOLUTIONS, S.L. provided by the State Agency for Tax Administration.

SIXTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP and the period granted for the submission of allegations had elapsed, it was confirmed that no allegations had been received from UPMOBILE SOLUTIONS, S.L.

Article 64.2.f) of the LPACAP -a provision of which UPMOBILE SOLUTIONS, S.L. was informed in the initiation agreement- establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to UPMOBILE SOLUTIONS, S.L., and the sanction that could be imposed. Therefore, considering that UPMOBILE SOLUTIONS, S.L. has not made allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

SEVENTH: According to the report collected from the AXESOR tool, the entity UPMOBILE SOLUTIONS, S.L. is an SME (Microenterprise), established in 2020, for which no financial information is available.

In view of all the actions taken by the Spanish Agency for Data Protection in this procedure, the

following facts are considered proven,

PROVEN FACTS

FIRST: The requests for information indicated in the second and third backgrounds were notified in accordance with the provisions of the LPACAP.

SECOND: UPMOBILE SOLUTIONS, S.L. has not responded to the requests for information made by this Agency in the framework of the investigative actions of file EXP202209784 within the granted deadlines.

THIRD: The initiation agreement of the present sanctioning procedure was notified to UPMOBILE SOLUTIONS, S.L., in accordance with the provisions of Article 44 of the LPACAP, through an announcement published in the Official State Gazette dated July 5, 2023.

FOURTH: UPMOBILE SOLUTIONS, S.L. has not submitted allegations to the initiation agreement of this sanctioning procedure.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation Breached

According to the available evidence, it is considered that UPMOBILE SOLUTIONS, S.L. has not provided the Spanish Data Protection Agency with the information it requested.

With the aforementioned conduct of UPMOBILE SOLUTIONS, S.L., the investigative power conferred to supervisory authorities by Article 58.1 of the GDPR, in this case, the AEPD, has been hindered.

Therefore, the facts described in the section "Proven Facts" are deemed to constitute an infringement attributable to UPMOBILE SOLUTIONS, S.L., for violation of Article 58.1 of the GDPR, which states that each supervisory authority shall have, among its investigative powers:

"a) to order the controller and the processor and, where applicable, the representative of the controller or the processor, to provide any information required for the performance of its tasks; b) to carry out investigations in the form of data protection audits; c) to carry out a review of the certifications issued under Article 42, paragraph 7; d) to notify the controller or the processor of any alleged infringements of this Regulation; e) to obtain from the controller and the processor access to all personal data and to all information necessary for the performance of its tasks; f) to obtain access to all premises of the controller and the processor, including any equipment and means of processing data, in accordance with the procedural law of the Union or of the Member States."

III

Classification and Qualification of the Infringement

According to the available evidence, the facts presented are deemed to constitute an infringement attributable to UPMOBILE SOLUTIONS, S.L.

This infringement is classified under Article 83.5.e) of the GDPR, which considers as such: "failure to provide access in violation of Article 58, paragraph 1."

The same article establishes that this infringement may be sanctioned with a fine of up to twenty million euros (€20,000,000) or, in the case of an enterprise, an amount equivalent to four percent (4%)

of the total annual global turnover of the previous financial year, opting for the higher amount. For the purposes of the statute of limitations for infringements, the infringement attributed is subject to a three-year limitation period, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

“ñ) Failure to provide access to the personal data, information, premises, equipment, and means of processing required by the competent data protection authority for the exercise of its investigative powers.

o) Resistance or obstruction to the exercise of the inspection function by the competent data protection authority.”

IV

Imposed Sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR.

It is noted that no mitigating or aggravating factors apply.

In light of the facts presented, it is considered appropriate to impose a sanction on UPMOBILE SOLUTIONS, S.L. for the violation of Article 58.1 of the GDPR classified under Article 83.5 e) of the GDPR. The corresponding sanction is an administrative fine of €500.00.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO IMPOSE on UPMOBILE SOLUTIONS, S.L., with NIF B02682276, for an infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR, a fine of €500.00 (FIVE HUNDRED euros).

SECOND: TO ORDER UPMOBILE SOLUTIONS, S.L. to provide, in accordance with the investigative power set forth in Article 58.1.a) of the GDPR, the requested information within ten working days, as required in the requests made in the context of the proceedings numbered EXP202209784 and referenced in the background of this resolution.

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It is warned that failure to comply with the requirements of this body may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its article 83.6, which may lead to the initiation of further administrative sanctioning procedures.

THIRD: NOTIFY this resolution to UPMOBILE SOLUTIONS, S.L.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution is enforceable, in accordance with the provisions of art. 98.1.b) of the LPACAP, within the voluntary payment period established in art. 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to art. 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the

last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of art. 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in art. 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with the documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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